

Week 5, Exercise 1: Privacy and data protection

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1. Valid consent?

I looked at my Google account. Google uses consent (Art 6 (1) a) GDPR) for things like personalised ads, and in my account personalised ads, Web & App Activity and YouTube History are all on. My account was created in Pakistan, so the provider is Google LLC, but the GDPR still applies because I live in Finland (Art 3 (2)).

Some parts are in line with the GDPR. Each setting has its own "Turn off" button, so withdrawing consent is as easy as giving it (Art 7 (3)), and I can still use Google's services with everything turned off, so consent is not a condition for the service (Art 7 (4)). However, all the settings say "On since October 22, 2024, when you created your account", and I do not remember choosing each one separately. They were either on by default or accepted with one click at sign-up. Consent has to be specific and given by a clear affirmative action (Art 4 (11)), and Recital 32 says that pre-ticked boxes or inactivity are not consent. The information about what each setting does is also spread over many pages, so the consent is not very well informed (Art 7 (2), Art 12 (1)). So I think the consent is only partly in line with the GDPR.

2. Right to access personal data

Art 15 gives the right to get a copy of my data (Art 15 (3)) and information about, for example, the purposes, recipients, storage period and profiling (Art 15 (1) a) to h)). The controller has to answer within one month and for free (Art 12 (3) and (5)).

On 30 September 2026 I made two requests. First, I used Google Takeout to export four products (My Activity, YouTube, Chrome and Access log activity). The export was free and ready the next day, but its status was "Completed with Errors" and Google said that "some data you selected might be missing". The files I opened, like my YouTube watch and search history, were HTML pages that were easy to read. Second, I sent a formal Art 15 request through Google's Privacy Inquiry form, choosing "Access my data". The form first pointed me to Google's self-service tools and only allowed 750 characters. The confirmation said they would "respond as soon as possible", with no case number or date. By 4 October I had not received a reply, which is still within the one-month limit.

In practice, getting a copy of the data was easy, but the export was incomplete and Google did not say what was missing. The information in Art 15 (1) is also not given for my own data. The privacy policy only says that data is kept "for different periods of time" and may be processed on "servers around the world", without saying how long or where my data is stored (Art 15 (1) c) and d)). So my rights are respected well for the copy of the data, but only partly for the rest of Art 15.

3. Anonymisation and pseudonymisation

Pseudonymisation (Art 4 (5)) means replacing identifying information, for example names, with something like an ID, so that the data can only be linked back to the person with additional information that is kept separately. Because it can be reversed, pseudonymised

data is still personal data and the GDPR applies to it (Recital 26). Anonymisation means the data can no longer be linked to a person at all, even when combined with other data. Anonymous data is not personal data, so the GDPR does not apply to it (Recital 26). The main difference is that pseudonymisation can be reversed and anonymisation cannot.